

Virendra Kumar Verma v. Madhyanchal Vidyut Vitran Nigam Limited

Allahabad High Court · Division Bench · 25 March 2022 · Writ-C No. 33178 of 2021 · WRIT - C No. 33178 of 2021 · **Dismissed as infructuous; liberty to sue the vendor.**

HEADNOTE

A subsequent purchaser was refused a new connection because of dues of the erstwhile consumer. After he deposited those arrears under compulsion, invoking the second proviso to Clause 4.1 read with Clause 4.3(f) of the U.P. Electricity Supply Code, 2005, and a connection was granted, the writ seeking a fresh connection and a bar on recovery of arrears prior to 10.06.2021 was dismissed as infructuous, with liberty to sue the vendor for the amount deposited if the law and the sale contract so permit.

FACTUAL SUMMARY

The petitioner purchased a 40.36 sq. m. residential house at Village Nawada Jogiyar, Bareilly, from Brij Bhushan by registered sale-deed dated 6 January 2021 and applied for an electricity connection. The licensee did not grant the connection because of outstanding dues against the erstwhile consumer of the same premises. He sought a mandamus for a fresh connection and a direction not to recover arrears prior to 10 June 2021. Counsel later stated that, under compulsion, he had deposited those dues and a connection had been granted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection after deposit of erstwhile consumer dues

HOLDING

Once the purchaser-applicant deposited the erstwhile consumer's arrears under compulsion in view of the second proviso to Clause 4.1 read with Clause 4.3(f) of the U.P. Electricity Supply Code, 2005, and a connection was granted, the writ seeking a fresh connection and a restraint on recovery of pre-10.06.2021 arrears became infructuous and was dismissed. Liberty was reserved to sue the vendor for recovery of the amount deposited if the law and the contract of sale so permit.

¶ 4-6

FLAG Court referred to the second proviso to Clause 4.1; the catalog outstanding-dues bar is numbered as the fourth proviso.

PRINCIPLE TAGS

clause-4.1-fourth-proviso-bar-on-new-connection-for-premises-with-outstanding-dues Counsel stated that, under compulsion and in view of the second proviso to Clause 4.1 read with Clause 4.3(f), the petitioner deposited the erstwhile consumer's dues, after which the connection was granted. The Court did not decide whether those arrears were lawfully recoverable from the purchaser as a condition of supply; it recorded the deposit, dismissed the writ as infructuous, and left recovery from the vendor to a civil suit. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE COULD INSIST ON PAYMENT OF THE ERSTWHILE CONSUMER'S ARREARS AS A CONDITION OF A NEW CONNECTION TO THE SUBSEQUENT PURCHASER, AND WHETHER RECOVERY OF BILLS PRIOR TO 10.06.2021 COULD BE RESTRAINED.

Merits of both mandamus prayers were not examined after the connection was granted. ¶ 2-5

NOT DECIDED — WHETHER THE AMOUNT DEPOSITED WAS RECOVERABLE FROM THE VENDOR.

Left to a civil suit if the law and the contract of sale so permit. ¶ 6

